

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

In 2022-23, the LTB remained unrelenting in its mission to address its backlog and ensure timely, fair, and responsive service to all Ontarians.

The LTB had been experiencing significant and well-documented pressures before 2020, as a result of adjudicator shortages and an antiquated case management system; these were compounded by the COVID-19 pandemic. The five-month moratorium on eviction hearings from March to August 2020 resulted in approximately 25,000 cases being added to the LTB's caseload.

Over the past two and a half years, the LTB has fundamentally transformed itself from a regional-based organization that relies heavily on paper and in-person hearings to a provincial organization that conducts hearings virtually and with an application process that is now primarily digital and online. Though this transformational change has caused some disruption, we are confident it has led to a more efficient and effective operating model. Over the long term, it will be more convenient for our users and result in the timely resolution of disputes.

This last fiscal year, while the LTB received a higher volume of applications than each of the two years before, the number of matters resolved in 2022-2023 was lower. The increase of LTB applications can be attributed to a variety of factors as Ontario adjusts to a post-COVID world. Some matters that come before the LTB may be complex and require additional time or focus to ensure that resolutions are fair and just.

In early 2023, Tribunals Ontario completed implementation of LTB's new case management system and retired its legacy system, CMORE. While the transition to the new system was not without some challenges, the portal will streamline the dispute resolution process and provide various new functionality to users. It allows parties to file and pay for their LTB applications online, upload evidence directly into the system, view, and exchange documents with other parties, and view their application status including any orders that have been issued related to their case. The system also has features that allow the parties to communicate with each other to discuss opportunities for settlement or ask for assistance from an LTB Dispute Resolution Officer to help reach an agreement.

Throughout the fiscal year, numerous enhancements and improvements were applied to the portal as part of the LTB's goal to have an integrated end-to-end digital user experience. They include:

- Requests for Mediated Services – this new feature was introduced to give parties the ability to request timely support in settling their matters prior to a hearing
- Self-Scheduling Tool – in March 2023, the self-scheduling tool was implemented allowing eligible applicants and/or their representatives to choose their preferred hearing date and timeslot for their hearing through the portal
- Available Applications – throughout the fiscal year, the LTB began increasing the number of applications that may be filed online. As of March 31, 2023, there were a total of 12 different applications available for users

Ongoing updates and enhancements to the portal features, functionality and processes based on feedback received from users and stakeholders will continue to be made. We expect that the convenience and efficiencies offered by the new portal will help us make significant inroads into the backlog in the coming year.

Another key priority for the LTB over the past fiscal year has been adjudicator and staff recruitment. In April

2022, the government announced \$4.5 million in funding over three years for an additional three adjudicators and ten staff. This was followed by an investment of 35 additional staff in late 2022 and in the spring 2023 an additional 40 adjudicator FTEs along with 5 staff FTEs. These investments will provide welcome assistance so that we can provide faster results, shorter wait times, and a better overall experience when users need to engage the board. As of March 31, 2023, the adjudicative roster comprised 39 full-time and 46 part-time members.

Other ways in which the LTB is continuing to look for opportunities and solutions to address service delays include:

- Ongoing review of business processes, including Lean and Ombudsman recommendations, with a view to streamlining procedures
- Optimizing hearing block sizes, in particular for L1/L9s, to best utilize adjudicative resources
- Holding training sessions for adjudicators on streamlined order writing, hearing room management and file preparation to improve member efficiency
- Maximizing operational and adjudicative efficiency through progressive development and deployment of features and documents in the portal
- Launching technical support service to troubleshoot parties' Zoom issues during hearings (leading to more efficient use of hearing time)
- Rolling out Orders from the Bench initiative, a new process whereby adjudicators issue simple, straightforward Orders by email to parties during their hearing
- Launching evening and weekend hearings primarily for adjourned matters and with the consent from all parties

In 2022-2023, the LTB also continued in its commitment to support users by reviewing and updating several online resources. Among them include updated brochures for renters in Ontario with key information for both landlords and tenants, the introduction of a new credit card payment form so applicants' personal information is secure, and consistent operational updates to the LTB's webpage, so users are kept up to date on what is happening at the LTB.

Throughout the fiscal year, the LTB continued to engage stakeholders with regular communications related to the portal, improving the user experience and functionality of the system, including streamlining processes and the implementation of those processes.

In September 2022, the LTB led educational and information sessions for portal users to walk through some features of the portal and address common questions.

During the fiscal year, the LTB conducted seven in person-hearing events.

Statistics

Table 1: LTB Applications

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Application	2022-2023	2021-2022	2020-2021
Applications Received	73,208*	61,586**	48,422**
Applications Resolved***	52,986	61,868	35,983
Active Cases at Year-End****	53,057	32,800	34,731

Notes:

* The totals include non-profit co-operative housing eviction applications filed in LTB's new case management system.

** The totals do not include non-profit co-operative housing eviction applications.

*** In 2022-2023, 47% of the applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), 6% through mediation (mediated or ordered by hearing mediated), and 29% through withdrawals.

****In a small number of cases, "resolved" applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received," less the "applications resolved."

Table 2: Landlord Applications Received by Type

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Case Type	Application Type	2022-2023	2021-2022	2020-2021	2019-2020
A1	Determine whether the act applies	138	115	96	102
A2	Sublet or assignment	532	376	383	491
A3	Combined application (usually includes an L1)	2,447	1,321	1,065	2,986
A4	Vary rent reduction amount	7	55	109	86
L1	Terminate & evict for non-payment of rent	37,690	31,240	24,481	44,621
L2	Terminate for other reasons and evict	15,354	13,852	11,031	15,732
L3	Termination – tenant gave notice or agreed	2,656	2,289	1,391	1,877
L4	Terminate the tenancy – failed settlement	3,366	3,545	1,551	5,156
L5	Rent increase above the guideline	605	613	404	758
L6	Review of provincial work order	0	0	1	1
L7	Transfer tenant to care home	2	2	6	1
L8	Tenant changed locks	46	35	25	41
L9	Application to collect rent	615	931	1,104	900
L10	Application to collect money a former tenant owes	992	3	N/A	N/A

Total	64,450	54,459	41,647	72,752
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Table 3: Tenant Applications Received by Type

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Case Type	Application Description	2022-2023	2021-2022	2020-2021	2019-2020
A1	Determine whether the act applies	114	80	64	85
A2	Sublet or assignment	72	59	74	62
A3	Combined application	1,372	860	583	1,610
A4	Vary rent reduction amount	0	1	1	0
T1	Rent rebate (e.g., illegal rent)	1,105	843	718	884
T2	Tenant rights	2,874	2,991	3,145	3,072
T3	Rent reduction	116	99	68	78
T4	Failed rent increase above guideline	25	8	4	4
T5	Bad faith notice of termination	1,067	550	316	408
T6	Maintenance	1,697	1,751	1,795	1,914
T7	Suite meters	13	4	7	5
Total		8,455	7,246	6,775	8,122

Table 4: Co-Op Applications Received by Type

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Case Type	Application Description	2022-2023	2021-2022	2020-2021	2019-2020
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	230	124	88	217
C1/2	Combined C1 and C2 applications	98	61	32	116

C2	Application to end the occupancy of the member unit and evict the member	131	67	73	141
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	1	3	3	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	41	45	22	91
Total		501	300	218	568

Table 5: Call Centre

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Calls	2022-2023	2021-2022	2020-2021	2019-2020
Calls handled	122,933	164,521	197,927	201,871
Average time per call	5:13	5:00	5:03	4:37
Average wait time in the queue	36:33	22:46	15:57	17:36

Table 6: LTB Key Performance IndicatorsTable 6: LTB Key Performance Indicators

Landlord and Tenant Board Key Performance Indicators	Target	Q1		Q2		Q3		Q4		FY 22-23 Total	
	2022-2023	#	%	#	%	#	%	#	%	#	%
Volume of in-person, electronic and written hearing events held at the <u>LTB</u>	N/A										
In-Person Hearing Events		0	N/A	3	N/A	3	N/A	1	N/A	7	N/A

Electronic Hearing Events		5,982	N/A	12,164	N/A	7,206	N/A	17,898	N/A	43,250	N/A
Written Hearing Events		160	N/A	76	N/A	24	N/A	23	N/A	283	N/A
Number of eligible accommodation requests granted (in whole or in-part) by the <u>LTB</u>	N/A	146	N/A	116	N/A	79	N/A	116	N/A	457	N/A
Percentage of hearings scheduled within 50 calendar days for L1 and L9 applications and 55 calendar days for all other applications except for L5's and A4's from the application receipt date	80%	272	14%	218	5%	315	6%	579	3%	1,384	7%
Decisions issued 20 calendar days for L1 and L9 applications and 35 calendar days for all applications except for L5's and A4's from the conclusion of the final hearing event	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for the <u>LTB</u>	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

Percentage of cases that are resolved through alternative dispute resolution (in whole or in-part) within the LTB

N/A TBD TBD TBD TBD TBD TBD TBD TBD TBD TBD

Notes:

*Over the course of the past year, the LTB has been operating out of two case management systems, as it transitioned from its legacy system (CMORE) to the new Tribunals Ontario Portal. As a result, the LTB is unable to report on certain KPIs for the past fiscal year.

**L1: Application to evict a tenant for non-payment of rent and to collect rent the tenant owes.

***L9: Application to Collect Rent the Tenant Owes.

****L5: Application for an Above Guideline Increase.

*****A4: Application to Vary the Amount of a Rent Reduction.

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Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis Licence Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act, 1990*
- *Funeral, Burial and Cremation Services Act, 2022*
- *Gaming Control Act, 1992*
- *Highway Traffic Act, 1990*
 - Subclause 32(5)(b)(i) - Medical (MED)
 - Subsection 47(1) – Medical (MED) and Commercial Vehicle Operator's Registration (CVOR)